

Motion is unopposed. The Hourly rates and billable hours were not contested. The Attorney hourly rates are consistent with Riverside County rate and amount to \$13,326.50. The requested Paralegal amount requested is \$6,175. This was based at a rate of \$250/hr. This Court finds \$150/hr to be reasonable for Riverside County Paralegal Rates and adjusts down to \$3,705. Attorney's fees in the amount of \$17,031.00 awarded.

Plaintiff seeks a 0.3 multiplier (5,850.45) The Court declines to apply a multiplier. The lodestar method is designed to produce a reasonable fee award in the typical case, and additional enhancement is appropriate only where the lodestar figure does not adequately account for factors not already reflected in the lodestar calculation. This case does not warrant enhancement. It was a routine Song-Beverly Act matter that settled on a CCP § 998 offer without a dispositive motion, trial, or novel legal issue. The contingent nature of the representation and any delay in payment are already fully reflected in the market rate lodestar the Court has approved for contingency based Song-Beverly work. Nothing in the record reflects extraordinary skill, exceptional results against heavy odds, or preclusion of other employment beyond what the lodestar itself compensates.

2.

CASE #	CASE NAME	HEARING NAME
CVME2507574	DANKO RESTAURANT GROUP, INC VS PATTAN	MOTION FOR SUMMARY ADJUDICATION ON CROSS-COMPLAINT

Tentative Ruling: Request For Continuance is Denied. For the Third Cause of Action, Motion for Summary Adjudication is Granted as to Sandra Danko in her Individual Capacity and Denied as to Robert Danko.

Danko Restaurant Group, Inc. ("Danko Restaurant Group"), operated a restaurant and bar in commercial space owned by Robles Brothers Investments, LLC ("Robles Brothers"). Plaintiffs Danko Restaurant Group and Kenneth Danko allege that proposed buyers agreed to purchase the business assets for \$300,000. They assert that the transaction failed after the buyers obtained a new lease, and that the buyers and Defendant Robles Brothers then retained or controlled substantial restaurant assets without payment. Plaintiffs assert contract, tort, statutory, and lease-related claims against Robles Brothers and other defendants.

Defendant/Cross-Complainant Robles Brothers' cross-complaint concerns a different set of alleged wrongs. It alleges that Danko Restaurant defaulted under the commercial lease. It alleges that Kenneth Danko and Robert Danko are liable on alter ego or related theories. It asserts that assets were diverted from Danko Restaurant. It asserts that certain statements and transfers were fraudulent. It also asserts that cross-defendants trespassed or otherwise interfered with Robles Brothers' property. The cross-complaint, filed 9/16/25, asserts: (1) breach of lease, (2) common count, (3) fraudulent conveyance, (4) fraud and deceit, and (5) trespass.

As is relevant to the present motion, the 3rd cross-claim alleges that Cross-Defendants Robert and Sandra Danko executed a quitclaim deed dated 10/30/24 transferring their Temecula residence to the Danko Family Trust, which was recorded on 12/11/24. It

also alleges that Danko Restaurant's assets, cash, and profits were transferred to individual cross-defendants and then received by the Trust. On 6/17/26, Robert and Sandra caused a corrective deed to be recorded, naming themselves as co-trustees. Robles Brothers seeks avoidance, attachment, injunctive relief, a lien, and related remedies.

Now, Cross-Defendants Robert and Sandra Danko move for summary adjudication on the 3rd cross-claim for fraudulent conveyance. They argue that the residence transfer dated 10/17/24 did not constitute a "transfer" because the Trust is a revocable inter vivos trust, that Robert and Sandra Danko remained its settlors, co-trustees, and sole lifetime beneficiaries, retained the power to revoke and direct distributions, and therefore left the property reachable by their creditors under Probate Code §18200. They also contend that Robles Brothers cannot establish injury. Sandra Danko separately argues that she is neither a Robles Brothers debtor nor a transferee, and that the 3rd cross-claim is the only claim asserted against her.

In opposition, Robles Brothers argues that the motion does not completely dispose of the 3rd cross-claim because that claim also concerns transfers of Danko Restaurant cash and profits. It contends that the timing of the trust and deed supports actual intent, and that the original deed was a sham because it named the Trust rather than its trustees. Robles Brothers asserts that the discovery concerning the Trust and bank transfers remains outstanding. It contends that Robert and Sandra Danko failed to identify all capacities in which they move in this motion. It also contends that remedies under the Uniform Voidable Transactions Act ("UVTA") include attachment and injunctive relief. Robles Brothers also relies on selected bank transactions described in counsel's declaration.

In reply, Robert and Sandra Danko respond that Probate Code §18200 applies to every asset allegedly received by the revocable Trust. Alternatively, the residence transfer is a separately adjudicable wrongful act under *Lilienthal & Fowler v. Superior Court* (1993) 12 Cal.App.4th 1848 and *Edward Fineman Co. v. Superior Court* (1998) 66 Cal.App.4th 1110. They argue that the "sham deed" theory defeats itself because an ineffective deed would establish no transfer at all. They contend that the discovery declaration does not justify a continuance. They also assert that Robles Brothers' bank record descriptions are inadmissible hearsay. They also argue that no trustee has been served or appeared in a representative capacity.

Evidentiary Objections - Robles Brothers made 8 objections to the declarations of Robert Danko (nos. 1-3) and Sandra Danko (nos. 1-5). The Court overrules Robert Decl.'s nos. 1-2 and Sandra's nos. 1, 2 and 5. The Court sustains Robert's no. 3 and Sandra's nos. 3 and 4.

Robert and Sandra Danko also made 23 objections to the declarations of Judy Y. Chiang (nos. 1-17) and Leanne Maestre (nos. 18-23). The Court sustains nos. 1, 6-17 (hearsay/ foundation), and 18-23. The Court declines to rule on nos. 2-5 as not dispositive.

Robles Brothers also objected to the notices of errata. The Court overrules that objection since the errata only serves to correct statutory subdivision references and a

pronoun. No new evidence, facts, or new grounds for relief are provided. No prejudice is shown.

The Motion -From commencement to conclusion, the party moving for summary adjudication bears the burden of persuasion. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 855.) A defendant can meet their initial burden by showing that one or more elements of the cause of action cannot be established, or that there is a complete defense. (Code Civ. Proc., §437c(p)(2).) To demonstrate that a cause of action cannot be established, the defendant must either negate an essential element of the plaintiff's cause of action, or show that the plaintiff lacks evidence. (*Chavez v. Glock* (2012) 207 Cal.App.4th 1283, 1301.) To negate an element, the defendant must establish that plaintiff's claims fail as a matter of law. (*Eriksson v. Nunnick* (2011) 191 Cal.App.4th 826, 849 (applying rule to issues of duty).) To demonstrate that the plaintiff lacks evidence, the defendant must show that the plaintiff does not possess and cannot reasonably obtain needed evidence. (*Aguilar*, supra, 25 Cal.4th at 855.) Once defendant met the burden, the burden then shifts to the opposing party to show a triable issue of material fact. (Code Civ. Proc., § 437c(p)(2).) Summary adjudication ordinarily must completely dispose of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Code Civ. Proc., § 437c(f)(1).) Separate and distinct wrongful acts combined in the same cause of action may nevertheless be adjudicated separately when each constitutes an independently maintainable claim. (*Lilienthal & Fowler*, supra, 12 Cal.App.4th at 1854-55.)

The Residence-Transfer - The material trust terms are undisputed: Robert and Sandra Danko are the settlors and co-trustees; the Trust is revocable; they are the sole lifetime beneficiaries and retain full control; and they may obtain the income and principal, up to the whole, during their lifetimes. (Separate Statement of Undisputed Facts ("UF") no. 1-9, 12-22.) Probate Code §18200 provides that property in a revocable trust remains "subject to the claims of creditors of the settlor to the extent of the power of revocation during the lifetime of the settlor".

Gagan v. Gouyd (1999) 73 Cal.App.4th 835, 842 (disapproved on another ground in *Mejia v. Reed* (2003) 31 Cal.4th 657) is controlling on this point. There, a transfer to a revocable trust of which the transferors remained beneficiaries "did not dispose of or part with an asset or an interest in an asset" because the property remained available to creditors. *Mejia v. Reed*, supra, 31 Cal.4th 657, 669, fn. 2, disapproved *Gagan* on a different issue concerning property transfers under marital settlement agreements, not revocable trusts. *Zanelli v. McGrath* (2008) 166 Cal.App.4th 615, 633, and *Galdjie v. Darwish* (2003) 113 Cal.App.4th 1331, 1349, likewise recognize a revocable trust does not prevent creditors of the settlors from reaching trust property, i.e., that revocable-trust property remains the settlor's property for creditor purposes.

Robles Brothers' alternative/sham deed theory does not create a triable issue. If the original deed transferred title to the co-trustees, then Probate Code §18200 and *Gagan* apply. On the other hand, if the deed was ineffective because it named a trust rather than an individual trustee holding title, then no interest was actually transferred by that instrument. Either way, the record does not show that the residence became less available to a creditor. In a fraudulent transfer claim, "[m]ere intent to delay or defraud

is not sufficient; injury to the creditor must be shown affirmatively.” (*Mehrtash v. Mehrdash* (2001) 93 Cal.App.4th 75, 80.)

Robles Brothers also relies on *Oiye v. Fox* (2012) 211 Cal.App.4th 1036, 1057-59. *Oiye* in a tort action that recognizes a preliminary injunction under Civ. Code §3439.07 when a potentially voidable transfer is shown. It does not make an otherwise non-voidable, and revocable, trust conveyance an actionable one. The residence transaction is a distinct, alleged transfer with its own date, transferors, and property. It is also separately adjudicable under *Lilienthal*.

The MSA Does Not Dispose of the Entire 3rd Cross-Claim as to the Husband Robert Danko

The 3rd cross-claim also alleges that some other “assets, cash, and profits” were transferred out of Danko Restaurant and received by the Trust. (Cross-Complaint ¶ 67; Prayer ¶¶ 7-12.) The Dankos have not met their burden here. The moving papers address only the Family Trust, but does not touch on the other Restaurant-to-individual asset/cash/profit transfer(s). (UF nos. 1-24.) As discussed, Probate Code §18200 makes trust property reachable by creditors of a settlor. However, without other showings, the statute does not establish that a creditor of Danko Restaurant may reach property after an alleged transfer from Danko Restaurant to another person or to a trust whose settlors are individuals. Nor do the moving papers establish that every allegedly diverted Danko Restaurant asset entered the Trust.

Given the missing showing from the moving papers, the Dankos have not met their burden. The motion does not completely dispose of the 3rd cross-claim as to Robert Danko. The Court nevertheless adjudicates the residence transfer because the notice and the separate statement identify that transfer as an issue (Issue# 3) and it constitutes a separate alleged wrongful act.

The Wife Sandra Danko is Entitled to Adjudication in Her Individual Capacity - Civ. Code §3439.01(e) defines a debtor as “a person that is liable on a claim.” Civ. Code §3439.08(b)(1)(A) permits a money judgment against a “first transferee of the asset or the person for whose benefit a [voidable] transfer was made.”

Sandra Danko met her moving burden. Her evidence states that: she was not a party to or guarantor of Danko Restaurant’s lease obligations; she held no office or ownership interest in Danko Restaurant; and had no involvement beyond co-owning and acting as a grantor in the transfer of her residence to the Trust “for estate-planning purposes.” (Sandra Danko Decl. ¶ 7; UF nos. 36-40.)

Robles Brothers admitted that Sandra Danko was “not a party to the lease” or “guarantor of any obligation of” the Danko Restaurant. (Responses to UF nos. 37 & 39.) It also admitted that the cross-complaint contains no alter-ego allegation against Sandra. (*Id.*, response to UF no. 36.) Robles Brothers otherwise relies on some selected bank account transactions, but those evidence should be excluded under Danko’s Objections nos. 6-17 to the Chiang Declaration. Robles Brothers otherwise argues that discovery is ongoing and requests a continuance on this present motion.

Here, Sandra Danko was a transferor of her interest in the residence, and that transaction was not voidable as it appears in the records. Family Code §910 may expose “the community estate” to a spouse’s debt before or during marriage, but it does not make the non-debtor spouse *personally* liable. Robles Brothers may not rely on its pleading alone after Sandra met her initial burden. (Code Civ. Proc., § 437c(p)(2).) The 3rd cause is therefore adjudicated in Sandra’s favor in her *individual* capacity.

Continuance is not Warranted - As to Robles Brothers’ request for a continuance for further discovery, a declaration under CCP §437c(h) must identify “facts essential to justify opposition may exist,” explain why they cannot then be presented, and show why additional time is needed. Here, the Chiang declaration describes some contentious discovery disputes and pending motions for discoveries, but does not identify specific expected evidence that could be dispositive to the goals of this motion, or to Sandra’s individual status.

Service or Joinder of the Trustees in Their Representative Capacities -A trust is not a separate legal entity. As a general rule, the trustee is the real party in interest. (*Portico Management Group, LLC v. Harrison* (2011) 202 Cal.App.4th 464, 473.) The trustee must be proceeded against in a representative capacity. (*Id.*) As the Dankos argue, the record here does not establish service or an appearance in either of their representative capacities as trustees. It is unclear if the Dankos have been properly served as trustees and/or whether they are properly joined to the action. Because the motion does not clearly seek relief in those capacities, and that the record is insufficient to resolve the lack of service issues, the Court limits the ruling to the moving individuals.

3.

CASE #	CASE NAME	HEARING NAME
CVME2515406	RINI VS FCA US LLC	MOTION TO COMPEL INITIAL DISCLOSURES

Tentative Ruling: Motion to Compel is continued until 10-27-26 8:30 am M301. Plaintiff may file a Reply Brief.

Plaintiffs James Rini and Meghan Rini bring this Song-Beverly action regarding a 2016 Dodge Journey with multiple defects. Plaintiffs filed this action on 5/29/25. After Defendant filed a demurrer, Plaintiffs filed the First Amended Complaint (FAC) on 2/13/26. The FAC asserts: (1) Civil Code § 1793.2(d); (2) Civil Code § 1793.2(b); (3) Civil Code § 1793.2(a)(3); (4) breach of the implied warranty of merchantability; (5) negligent repair; and (6) fraudulent inducement concealment.

Plaintiffs move to compel Defendant FCA to comply with Code of Civil Procedure section 871.26 to provide initial disclosures and pay sanctions of \$2,500. They assert that the 60 days commenced upon the filing of Defendant’s demurrer, and that Defendant has not provided full and complete verified disclosures. They argue that a simple VIN search would return the records of the vehicle. They identify the missing documents.

In opposition, Defendant contends that section 871.26 applies to express warranty claims—to which the court sustained the demurrer and Plaintiff did not amend. It asserts that there are no requirement of verifications. It argues that section 871.26